

26NWCV01408 26NWCV01408

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Case Number: 26NWCV01408 Hearing Date: June 23, 2026 Dept: C

HENRY L. MONDAY, JR. vs

ROYAL PACIFIC FUNDING CORPORATION, et al., Case No. 26NWCV01408

In this wrongful foreclosure

action, the Court granted Plaintiff Henry L. Monday's ex parte application for

a Temporary Restraining Order on April 30, 2026. Defendants Royal Pacific

Funding Corp. and Neighbor to Neighbor Homes, LLC were restrained from evicting

Monday from the real property located at 9354 Stamps Avenue, Downey, California

90240. Defendants were ORDERED TO SHOW CAUSE why a preliminary injunction

should not issue on May 26, 2026. Per stipulation of the parties, Monday

agreed to pay Defendant Neighbor to Neighbor \$3750.00 (the fair rental value of

the property) within 10 days. On May 26, 2026, the Court continued the

OSC re Preliminary Injunction to June 23, 2026 for Plaintiff to submit evidence

of loan modification. Plaintiff's supplemental brief was due on June 5,

2026. Opposition was due on June 19, 2026. The TRO remained in

effect. Because Monday failed to pay \$3750 within 10 days of April 30, as agreed upon, the Court ordered Plaintiff to post bond with the court in the amount of \$7500.00 within 10 days.

In a Supplemental Brief filed

on June 9, 2026, Plaintiff submits evidence of a loan modification agreement which was mailed on July 1, 2025. (Monday Decl., ¶5, Ex. A.) Monday was required to return the executed agreement by July 24, 2025. (Id. at ¶4.)

In its Supplemental Response served electronically on June 19, 2026 and filed

on June 22, 2026, Royal Pacific contends that it never received an executed

loan modification agreement from Plaintiff. (Cowan Decl., ¶20.) On July

10, 2025, Plaintiff's attorney contacted Royal Pacific and stated that the loan

modification documents were being looked over and would be sent back. (Id.,

¶18.) On July 23, 2025, a day before the signed loan modification documents

were due, Plaintiff's attorney requested changes to the Unpaid Principal

Balance (UPB) and interest rate but never returned the signed loan modification

documents and only returned a signed compliance agreement. (Id., ¶19.)

In November and December 2025, Royal Pacific sent letters to Plaintiff

indicating that his loss mitigation application was incomplete and to submit

further documentation. (Id., ¶¶22-24.) The Subject Property was

eventually sold to Defendant Neighbor to Neighbor on February 5, 2026. (Id.,

¶25.) In a Reply filed June 22, 2026, Plaintiff presents no evidence to dispute Royal Pacific's timeline of events. Plaintiff's claim that he mailed a loan modification agreement to Royal Pacific on July 1, 2026 is not supported by proof of mailing and is inconsistent with subsequent communications by his attorney to Royal Pacific and by Royal Pacific to Plaintiff. The Court notes that Plaintiff has not posted bond as required. The Court finds that Plaintiff has not met his burden of showing a reasonable likelihood of prevailing on the merits at trial. (Smith v. Adventist Health System West (2010) 182 Cal.App.4th 729, 749.) Accordingly, the request for a Preliminary Injunction is DENIED. The Temporary Restraining Order entered on April 30, 2026 is DISSOLVED. Royal Pacific to give notice.